

26PR00195 Estate of Barbara T Hacker

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-08-24

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Estate of Barbara T Hacker

Case Number

26PR00195

Case Type

Trust

Hearing Date / Time

Mon, 08/24/2026 - 08:30

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required.

Any Respondents desirous to object must file a written objection before the next hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

The petition is recommended for approval, absent objection, for the following reasons:

California Rules of Evidence allow the existence and contents of a writing that has been lost or destroyed to be proved by secondary evidence. (Evid. Code, §1521.) If the trust instrument has been lost or destroyed, and no copy is available after reasonable efforts to procure one have failed (Evid. Code, § 1523, subd. (c)(1)), the party relying on the trust instrument may prove its loss or destruction and then prove its contents by other evidence, often oral testimony, as long as there is no indication that the instrument was fraudulently destroyed (Evid. Code, § 1523, subd. (b)).

If the “material terms” of the trust become contested, “the court shall exclude secondary evidence of the content of writing...” (Evid. Code, § 1521, subd. (a)(1).) The primary authority on lost instruments is discussed at length in *Dart Industries, Inc. v. Commercial Union Ins. Co.* (2002) 28 Cal.4th 1059. The rule re: suspicion is there cited as “If any suspicion hangs over the instrument, or that it is designedly withheld, a rigid inquiry should be made into the reasons for its non-production.” (Id. at p. 1069.)

In this case, suspicion hangs over the trust instrument. The facts before the Court show that one of three children lives in the family home that is held in trust on title, and has there lived for several years, up to and throughout the time the settlor of the trust passed away. This presumably gave the child occupying the home direct access to Decedent’s estate planning documents, because such documents are usually stored in the home. At minimum, that child bears the burden of proving the trust is lost or destroyed and the burden of proving its contents by other evidence. (Evid. Code, §1523, subd. (d).)

However, the facts also show that child has a distinct interest in remaining in the home, claims to have a life estate in said home according to terms in the trust, and now refuses to turn over the trust instrument to his siblings, or cooperate in the investigation for said instrument in any meaningful way. Thus, that child not only has a motive to destroy the trust instrument if any clause did not benefit the child, but also has shown suspect behavior hostile towards the inheritance rights of his siblings.

Therefore, the Court should not only find that suspicion hangs over the non-availability of the trust, but if the trust instrument cannot be produced, the Court should find that the trust’s material terms are contested and exclude all secondary evidence of the trust and its terms, leading to a finding that the trust fails and the Decedent died intestate.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

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